Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1469
Claimant:	Jonathan Osborne
Adjuster:	Alison Sweeney

2023-07-21 - Claim opened following report of a collision at an intersection. Insured vehicle was turning left and was strcuk by a vehicle proceeding straight through on the opposing green. Claimant reports left shoulder pain following airbag deployment. Photos of both vehicles requested from the insured and the police report number confirmed. No attorney on file for the claimant.

2023-07-28 - Spoke with the claimant by phone. Claimant states they were the driver of the straight-through vehicle and believe the left-turning vehicle entered the intersection too early. Claimant has been seen at an urgent care clinic and is awaiting referarl to an orthopedic provider for the shoulder. Claimant confirmed they have not retained counsel and asked how the claim process works. Provided general information about the bodily injury and property damage steps and sent the written claim packet.

2023-08-03 - Reviewed the scene diagram in the responding officer's report. Officer noted skid marks from the straight-through vehicle and a statement from the left-turning driver that the signal had been amber. Signal timing records for the intersection requested from the city. Liability currently appears to be disputed and will be evaluated once the timing records arrive.

2023-08-07 - Received medical records from the urgent care visit. Diagnosis lists a strained left shoulder with limited range of motion and a recommendation for physical therapy. No fracture identified on imaging. Claimant has not yet scheduled the orthopedic follow-up. Sent a reminder letter to the claimant with the list of approved providers and a request for ongoing treatment notes.

2023-08-15 - Follow-up call with the claimant to check on treatment progress. Claimant reports attending the first phyiscal therapy sesison and still experiencing pain when lifting the arm above shoulder height. Claimant again confirmed no legal representation. Reserve reviewed and adjusted based on the current medical picture. Liability position remains under review pending the signal timing data. Next check-in scheduled for two weeks from the call.

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Recorded Statement

Claim number:	C-1469
Statement of:	Jonathan Osborne
Taken by:	Alison Sweeney
Date:	2023-07-27

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on the recording, but I can confirm I'm the driver of the vehicle involved.

Q: That's fine. Can you describe where the accident happened?

A: It was at an intersection in Conroe, Texas. I was turning left across the oncoming lane to get into a shopping center parking lot.

Q: What was the traffic like when you started your turn?

A: Light, honestly. I had a gap, or I thought I did. There was a car coming toward me that I didn't judge well.

Q: Did you have a green light or a left-turn arrow?

A: It was a green light, but no arrow, so I was yielding to oncoming traffic.

Q: What hpapened next?

A: The other vehicle hit the front passenger side of mine. My car spun a little and stopped against the curb.

Q: Were you injured?

A: Yes. My right shoulder took the brunt of it when the seatbelt locked and I hit the door. I felt a sharp pain right away and it's gotten worse since.

Q: Did you seek medical treatment?

A: I was taken by ambulance to the emergency room, and I've been following up with my doctor since then. They mentioned possible strain and I'm still doing physical therapy.

Q: Is there anything you'd like to add about how the accident happened?

A: Only that I accept I should have waited longer before I went. I'm sorry for the dmaage it caused.

Q: Thank you. This concludes the statement.